

TENTATIVE RULINGS

FOR: September 11, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

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Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Ravinder Parkash Kundra

25PR000098

REVIEW – 1ST YEAR

TENTATIVE RULING: The Court sets the matter for an Accounting on November 3, 2026, at 8:30 a.m. in Dept. A. The Review – 1st Year is CONTINUED to November 3, 2026, at 8:30 a.m. in Dept. A to coincide with the Accounting and to allow conservator time to file: (1) Notice of Conservatee’s Rights (Judicial Council form GC-341) mailed to relatives of the

proposed Conservatee within the second degree; and (2) Care Plan (Judicial Council form GC-355/356).

This is a conservatorship of the person and estate. There is no accounting on file as required pursuant to Probate Code section 2620, subdivision (a). All accounting documents (or a Request for Waiver of Accounting, Form GC-410) must be filed at least 30 days prior to the next hearing. The Clerk is directed to send notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Joel V. Benson v. Lisa Benson et al

25CV001556

STATUS CONFERENCE RE: APPRAISER

APPEARANCE REQUIRED

.....
Firefly Health Corp v. Trulieve Inc. et al

26CV000476

MOTION FOR RECONSIDERATION OF ORDER GRANTING MOTION TO COMPEL ARBITRATION AND REQUEST FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Firefly Health Corp. dba Velvet Cannabis (Firefly) moves, pursuant to Code of Civil Procedure sections 1008, subdivision (a), for reconsideration of the Court's Order After Hearing Granting Defendant's Motion to Compel Arbitration, filed August 5, 2026 (8/6 OAH). Firefly also moves, pursuant to Code of Civil Procedure sections 473, subdivision (a)(1), and 576, and California Rules of Court, rule 3.1324, for leave to file a Second Amended Complaint.

"When an application for an order has been made to a judge, or to a court, and . . . granted . . . any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Code Civ. Proc., § 1008, subd. (a) (Section 1008).)

“The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*) “A motion for reconsideration must be based on new or different facts, circumstances, or law. [Citation.] ‘To merit reconsideration, a party must give a satisfactory reason why it was unable to present its ‘new’ evidence at the original hearing.’ [Citation.]” (*McPherson v. City of Manhattan Beach* (2000) 78 Cal.App.4th 1252, 1265.)

The Court is persuaded that it retains jurisdiction to reconsider the 8/6 OAH pursuant to Code of Civil Procedure section 1008.

Firefly, through the Supporting Memorandum, is vague as to the precise “different facts, circumstances, or law” the instant application is based upon. What is clear is that Firefly seeks to file an amended complaint to omit certain allegations of fact set forth in the operative First Amended Complaint (FAC) which the Court relied on in making the 8/6 OAH.

Firefly asserts that these allegations were incorrect when made. As Firefly notes, however, it specifically made this argument – that allegations in the FAC were inaccurate – in its Opposition to the Motion to Compel Arbitration, and at hearing on that Motion. As such, the fact that the allegations in the FAC were inaccurate is neither new nor different from the facts presented through the original Opposition.

On Reply, Firefly attempts to argue around the foregoing circumstance by claiming that the “new fact” – the fact unknown until *after* August 6, 2026 – is that the purportedly erroneous allegations were caused by counsel’s filing of the wrong draft of the pleading. “It is counsel’s post-hearing discovery that the operative FAC was an earlier draft selected during the April e-filing and that its shorthand inaccurately conflated Firefly with Velvet Holdings.” (Reply at 3:22-24.) This is, arguably, consistent with Counsel’s declaration that “I first discovered that the wrong version had been filed when reviewing the case file immediately after the hearing on the Motion to Compel Arbitration.” (Declaration of Jasun C. Molinelli at ¶ 6 (Molinelli Decl.).)

The fact that counsel used the wrong draft, however, is wholly immaterial to the issues raised in the Motion to Compel Arbitration. The purportedly erroneous allegations of the FAC *are* potentially material to those issues. As discussed above, however, it is clear that Firefly was aware of the purportedly erroneous nature of those specific allegations at the time it drafted its Opposition to that Motion. As such, the existence of these purportedly erroneous allegations is not a new or different fact upon which reconsideration may be had.

Firefly gives no reason, in support of the instant motion, why it was unable to present each argument set forth here, and to request leave to amend the operative complaint, through its Opposition to the Motion to Compel. As such, it appears the Court is without jurisdiction to consider the instant motion. (Section 1008, subd. (e) [“This section specifies the court’s jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and . . . [n]o application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section”].)

Even if the Court were to find that the Molinelli Decl. identifies new or different facts, and adequately explains why they could not have been raised earlier, Firefly fails to persuade the Court that permitting it to omit these allegations from a Second Amended Complaint would compel a different conclusion on the Motion to Compel Arbitration.

While the moving papers cite to, and discuss, a proposed Second Amended Complaint, none is included in the moving or reply papers. There is no Exhibit A to either the Support Memorandum or to the Molinelli Decl. in the Court's files. As such, Firefly fails to persuade the Court that both (a) the proposed amendment(s) would *support* a denial of the Motion to Compel Arbitration *and* (b) such denial would be appropriate in light of the sham pleading doctrine.

Based on the foregoing, the request for reconsideration of the 8/6 OAH is DENIED.

Because the order compelling Firefly to arbitrate the action stands, the request for leave to amend the operative complaint should be directed to the arbitrator and not the Court.

****at 1:30 p.m.****

American Canyon I. LLC v. City of American Canyon et al

26CV001286

DEFENDANT CITY OF AMERICAN CANYON'S DEMURRER TO COMPLAINT OF
PLAINTIFF AMERICAN CANYON 1, LLC

TENTATIVE RULING: The parties are ordered to appear and be prepared to address, at a minimum, the following questions:

1. In light of the June 16, 2025 Resolution No. 2026-55 (the "June Resolution"), is the Petition moot?
2. Assuming the Court finds Petitioner's challenge to the decisions taken through the ULL Agreement and HLAT Tax Sharing Agreement (and corresponding County resolutions) are moot, are any of the remaining causes of action ripe for adjudication? For example, are the ULL Agreement, as amended, and the HLAT Tax Sharing Agreement exempt from CEQA and/or "projects" under CEQA?
3. Since the ULL Agreement has been clarified by the June Resolution, wouldn't the best course of action be to allow Petitioner leave to amend the Petition, assuming *arguendo* it can state a ripe claim?

A. PROCEDURAL MATTERS

Respondents and Defendants City of American Canyon and its City Council ("City") demur, pursuant to Code of Civil Procedure section 430.10 subdivisions (e) and (f), to the Verified Petition and Complaint ("Petition") filed by Petitioner and Plaintiff American Canyon, LLC ("AC-1"). On August 14, 2026, Real Parties in Interest the Hess Collection Winery,

Kenneth E & Gail Laird Trust, and American Canyon Holdings LLC (collectively, “RPI”) joined.

The Petition asserts six causes of action: two for Writs of Mandate under both Code of Civil Procedure sections 1085 and 1094.5, and one each for Declaratory Relief, Injunctive Relief, Violation of the California Environmental Quality Act (“CEQA”) (Public Resources Code §§ 21000 *et seq.*), and Violation of the Cortese-Knox-Hertzberg Act (“CKHA”) (Gov. Code, §§ 56000 *et seq.*). The present demurrer challenges the First Cause of Action for Writ of Mandate, Third Cause of Action for Declaratory Relief, Fourth Cause of Action for Injunctive Relief, Fifth Cause of Action for Violation of CEQA, and Sixth Cause of Action for Violation of CKHA.

B. REQUEST FOR JUDICIAL NOTICE

The Court takes judicial notice of City of American Canyon Resolution No. 2026-55, pursuant to Evidence Code section 452, subdivision (b).

C. LEGAL STANDARD

A complaint must contain “facts constituting the cause of action.” (Code Civ. Proc., § 425.10, subd. (a)(1).) “The party against whom a complaint...has been filed may object, by demurrer...to the pleading on grounds [that]...[t]he pleading does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).)

A demurrer is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for granting the motion any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because the demurrer tests “only the legal sufficiency of the pleading...the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

D. DISCUSSION

City argues that the entire Petition, and every cause of action stated therein, fails to state facts sufficient to constitute a cause of action because the entire Petition is based on the false premise that the agreements at issue in the Petition altered a 2008 City resolution (“Resolution 2008-105”) setting the City’s Urban Limit Line (“ULL”) until 2030. (Dem., 4:2-10.) City contends that the exhibits attached to and made a part of the Petition disprove AC-1’s assertion rendering the entire Petition subject to general demurrer for failure to state any valid causes of action under the laws of the State of California. (*Ibid.*)

Although City uses different titles in its demurrer, City is referring to the following two agreements alleged and attached to the Petition: (1) the Urban Limit Line and Regional Housing Needs Allocation Agreement with Napa County (“2026 ULL Agreement”), attached as Exhibit 9 to the Petition; and (2) the Hess-Laird Affected Territory Property (“HLAT”)¹ Tax Sharing Agreement (“HLAT Tax Sharing Agreement”), attached as Exhibit 11 to the Petition. (Mem., 13:21-25; see also Pet., ¶¶ 41-42.) Both agreements are referred to collectively hereinafter as “Agreements.”

City’s demurrer is based on the proposition that the plain language of the Agreements attached to the Petition does not support AC-1’s allegations made through the Petition—i.e., that City acted outside its municipal authority, and violated Resolution 2008-105,² by approving and adopting the Agreements (see Pet., ¶ 85).

The Court disagrees with the City’s suggestion that its interpretation/characterization of the Agreements is the only reasonable interpretation. It is certainly not clear from the plain language of the Agreements that the 2026 ULL Agreement does not seek to change the ULL and annex the 281 acres at issue (HLAT) here.

The City appears to have acknowledged as much since, two weeks after the instant Petition was filed, the City adopted a resolution to clarify a purported “inadvertent error” in the 2026 ULL Agreement regarding the approval of a ULL amendment. (See Mem., 18:11-14; see also Declaration of Carmen A. Brock, Exh. B.)³

Understandably, since Petitioner did not have the benefit of the June 2026 Amendment, the Petition is almost entirely focused on the City’s purported violation of the Resolution 2008-105. For example, the Petition states:

Because the City and County failed to comply with the 2008 act and governing law, Petitioner petitions this Court for a writ of mandate under Cal. Code of Civil Procedure Sections 1085 and 1094.5, directing the City and the County to vacate and set aside the City’s resolutions, approvals, and agreements that approve the expansion of the ULL in violation of the law. (Petition ¶ 4.)

Petitioner also challenges the City’s adoption of an agreement approving the ULL expansion and the County’s approval of the same agreement, which will serve to annex the additional 281 acres, without proper review under the California Environmental Quality Act (“CEQA”). CEQA applies to the approval of any annexation proposal, given that a development is intended to follow the proposal. There has been no CEQA review for the proposed expansion of the ULL to include the new property intended for development. (Petition ¶ 5.)

¹ The HLAT is defined as “approximately 281 acres currently in the unincorporated County of Napa.” (Pet., p. 7, ¶ 34, fn. 1.)

² Resolution 2008-105 stated, among other things, that “[t]he City Urban Limit Line established by the proposed measure could only be changed by a subsequent vote of the voters of the City at a City election and would remain in effect until January 1, 2030.” (Pet., ¶ 26, citing Exhs. 1, 3.)

³ This Exhibit is the subject of City’s Request for Judicial Notice to which AC-1 did not object.

Petitioner also challenges the City's approval of the ULL expansion without rezoning the territory to be annexed in accordance with the Cortese-Knox-Hertzberg Local Government Reorganization Act of 2000 (the "Cortese-Knox-Hertzberg Act"). Pursuant to the Cortese-Knox-Hertzberg Act, a Local Agency Formation Commission approving an annexation application must require that a city applying for annexation approval rezone the territory to be annexed or take alternative measures. The City did not rezone the territory or take alternative measures that would satisfy the Cortese-Knox-Hertzberg Act. (Petition ¶ 6.)

Petitioner seeks declaratory relief confirming that any expansion of the ULL is not allowed until January 1, 2030, and that any such expansion can only be approved through a vote of the voters. (Petition ¶ 7.)

Petitioner also seeks to enjoin any further approvals, agreements, or actions by the City and the County in furtherance of the attempted expansion of the ULL prior to January 1, 2030 without a vote of the voters, pending the resolution of this proceeding and full compliance with CEQA and California law. (Petition ¶ 8.)

In Opposition, Petitioner appears to concede that the Agreements do not seek to annex the 281 acres in violation of the Resolution 2008-105. However, Petitioner argues that some of its claims are not contingent on the alleged violation.

This leads to the Court to consider whether the current Petition is moot, in its entirety or otherwise, and to pose the questions set forth above. Given these threshold issues as to mootness and ripeness, on which the Court seeks further information in response to its questions above, the Court does not reach City's demurrer to the individual causes of action at this point.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Sienna Notaro

26PR000113

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON –
LIMITED CONSERVATORSHIP

APPEARANCE REQUIRED

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Ryan Hemming v. Cappel Management LXII, LLC et al

26CV000473

MOTION TO COMPEL ARBITRATION AND STAY ACTION

TENTATIVE RULING: The motion is GRANTED. Plaintiff is ordered to remit to arbitration his claims asserted through the Complaint in this action. The Clerk shall set the matter for a Status Conference re: Arbitration on March 11, 2027, at 8:30 a.m. in Dept. B. The parties shall, no later than March 4, 2027, file a brief statement informing the Court of the status of arbitration. The September 11, 2026 Case Management Conference is VACATED.

A. PROCEDURAL MATTERS

Defendants Cappel Management LXII, LLC, dba Kastner Honda (Kastner Honda), and Tam Nguyen (Mr. Nguyen) (collectively, Defendants) move, pursuant to the California Arbitration Act (CAA) (Code of Civil Procedure sections 1280 *et seq.*) and the Federal Arbitration Act (FAA) (9 U.S.C. § 1 *et seq.*), for an order compelling Plaintiff Ryan Hemming (Plaintiff) to arbitrate his claims in the instant matter and immediately staying all proceedings pending completion of arbitration.

The Complaint asserts seven causes of action arising from allegations regarding race and age discrimination, harassment, retaliation, and wrongful termination.

Plaintiff's Evidentiary Objections to Defendants' Evidence are OVERRULED. The Court finds that the Declaration of Katie Digsby (Digsby Decl.) provides sufficient foundation and personal knowledge for the material declared therein. Namely, Ms. Digsby's position as Director of Human Resources for Victory Automotive Group, LLC—which has common ownership with, and provides policy and administrative services to, Kastner Honda—is a sufficient basis upon which her personal knowledge and familiarity of Plaintiff's onboarding process with Kastner Honda rests. Moreover, Ms. Digsby's description of the electronic platform through which Plaintiff's signature was affixed to the Mutual Agreement to Arbitration (Arbitration Agreement or Agreement): (1) is consistent with that found to establish the plaintiff's signature in *Espejo v. Southern Cal. Permanente Med. Group* (2016) 246 Cal.App.4th 1047, 1062, cited by Plaintiff, and (2) provides significantly more detail than that found to be lacking in personal knowledge in *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 169, cited by Plaintiff.

B. LEGAL STANDARD

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a motion to compel arbitration, supported by *prima facie* evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996)

14 Cal.4th 394, 413.) The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*) California law strongly favors arbitration. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 35.)

C. DISCUSSION

1. Defendants Make a *Prima Facie* Showing that an Arbitration Agreement Exists Covering Plaintiff's Claims Against Defendants

Defendants present *prima facie* evidence that “Kastner Honda,” and “its parents, affiliates, successors, and assigns including but not limited to Victory Automotive Group, LLC and its respective officers, shareholders, partners, directors, members, managers, and agents (collectively, the Company or Employer),” on the one hand, and Plaintiff, on the other hand, entered into the Arbitration Agreement attached as Exhibit A to the Digsby Decl.

Plaintiff concedes that Employer is defined in the Agreement as Kastner Honda. Plaintiff takes issue with the fact, however, that the Agreement identifies “Kastner Honda,” and not “Cappo Management LXII, LLC, dba Kastner Honda” as Employer. Plaintiff then argues that “[u]se of a fictitious business name does not create a separate legal entity.” *Pinkerton’s, Inc. v. Superior Court*, 49 Cal.App.4th 1342, 1348 (1996). The signature page therefore names no legal entity of its own.” (Opp., 4:16-18.)

Plaintiff’s argument is not entirely clear to the Court, but the Court finds that *Pinkerton’s, Inc.* supports Defendants’ position—that the inclusion of “Kastner Honda” is enforceable against “Cappo Management LXII, LLC, dba Kastner Honda.” *Pinkerton’s, Inc.* holds that a corporation and its fictitious business name are the same legal entity, not legally distinct entities. By extension, where an arbitration agreement names a fictitious business name, the underlying legal entity is the contracting party against whom the agreement is enforceable. Here, Plaintiff alleges in his Complaint that “Cappo Management LXII, LLC” is doing business as “Kastner Honda.” (Compl., ¶ 2.) Under similar circumstances, *Kostandian v. American Honda motor Co., Inc.* (2026) 120 Cal.App.5th 872, 879-80 held that a corporation was a party to an arbitration agreement, where the agreement only named the fictitious business name, but the plaintiff conceded, through the complaint’s allegations, that the corporation was doing business as the fictitious business name.

Based on the foregoing, the Court finds that Defendants have made a *prima facie* showing that Cappo Management LXII, LLC, dba Kastner Honda is a party to the Arbitration Agreement.

With respect to Mr. Nguyen, Defendants argue that “California permits a nonsignatory defendant to compel a signatory plaintiff to arbitrate where there is a connection between the claims alleged against the nonsignatory and its alleged agency relationship with the signatory.” (Mem., 6:10-12, citing *Dryer v. Los Angeles Rams* (1985) 40 Cal.3d 406, 418.) Defendants do not provide analysis of the legal principle discussed in *Dryer* to the present facts.

The Court finds that *Dryer* applied the agency exception to the general rule that only a party to an arbitration agreement may enforce it. *Dryer* held “[i]f, as the complaint alleges, the individual defendants, though not signatories, were acting as agents for the [signatory corporation], then they are entitled to the benefit of the arbitration provisions.” (*Ibid.*) While the controversy that was the subject of litigation in *Dryer* was based upon the very agreement containing the arbitration provision, that fact (which is perhaps relevant to an equitable estoppel theory for a nonsignatory enforcing an arbitration agreement) was not the basis for the holding in *Dryer* under the enumerated “agency” theory. Rather, “[t]he [agency] exception applies, and a defendant may enforce the arbitration agreement, when a plaintiff alleges a defendant acted as an agent of a party to an arbitration agreement.” (*Soltero v. Precise Distribution, Inc.* (2024) 102 Cal.App.5th 887, 898. Internal quotations omitted.)

Here, as Plaintiff concedes through his Complaint, Mr. Nguyen is being sued as an agent of Kastner Honda. (Compl., ¶¶ 3, 25, 36, 47, 68, 73, 78, 82.) Thus, under *Dryer* and the agency exception, Mr. Nguyen is entitled to the benefit of the Arbitration Agreement.

The Court finds that the scope of claims subject to arbitration pursuant to the Arbitration Agreement is broad and appears to the Court to encompass all of Plaintiff’s claims against Defendants.

Based on the foregoing, the Court finds that Defendants have carried their initial burden of proving, by a preponderance of the evidence, an agreement to arbitrate each of Plaintiff’s claims. (*Rosenthal, supra*, 14 Cal.4th at 413.)

2. Plaintiff Fails to Show that the Arbitration Agreement is Unconscionable

“A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125 (*OTO*)).) Thus, the doctrine of unconscionability has both a procedural and a substantive element. (*Ibid.*) “‘The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. [Citations.] Substantive unconscionability pertains to the fairness of an agreement’s actual terms and to assessments of whether they are overly harsh or one-sided.’ [Citation.]” (*Ibid.*)

“‘The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.’ (Citation.) But they need not be present in the same degree. ‘Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.’ (Citation.) In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 abrogated on other

grounds by *AT&T Mobility LLC v. Concepcion* (2010) 563 U.S. 333, [131 S.Ct. 1740, 179 L.Ed.2d 742].)

The defense is “inherently fact specific.” (*OTO, supra*, 8 Cal.5th at 138.) “The burden of proving unconscionability rests upon the party asserting it.” (*Id.* at 126.) Under the FAA, unconscionability claims are to be resolved by the trial court before enforcing an arbitration agreement. (*Id.* at 138.)

a. Plaintiff Fails to Meet his Burden to Prove Procedural Unconscionability

For procedural unconscionability, the “pertinent question” is “whether circumstances of the contract’s formation created such oppression or surprise that closer scrutiny of its overall fairness is required.” (*OTO, supra*, 8 Cal.5th at 126.) “Oppression occurs where a contract involves lack of negotiation and meaningful choice, surprise where the allegedly unconscionable provision is hidden within a prolix printed form.” (*Ibid.*) “The circumstances relevant to establishing oppression include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party’s review of the proposed contract was aided by an attorney.” (*Id.* at 126-127 quoting *Grand Prospect Partners, L.P. v. Ross Dress for Less, Inc.* (2015) 232 Cal.App.4th 1332, 1348.)

Plaintiff argues the Agreement is procedurally unconscionable because it is a preprinted, employer-drafted form, and binds the employee to rules it never supplied. However, Plaintiff submits no evidence in support of his contentions in Opposition. Specifically, Plaintiff submits no evidence as to any of the above-numerated *OTO* factors. On the other hand, the Agreement expressly states: “I understand that entering into this agreement is entirely voluntary and if I choose not to enter into it, my Employer will not threaten, retaliate, or discriminate against, or terminate me because of that.” (Digsby Decl., Exh. A.) Moreover, Plaintiff submits no evidence that he requested a copy of the JAMS rules or that his request was denied, despite the Agreement expressly stating: “I understand that the Company will provide me a written copy of [the JAMS] rules upon request.” (*Ibid.*)

Based on the foregoing, Plaintiff has not met his burden to prove procedural unconscionability.

b. The Court Does Not Find the Arbitration Agreement Substantively Unconscionable

Plaintiff argues that the Agreement is substantively unconscionable on three grounds.

First, Plaintiff argues that the following notice provision purports to waive statutory rights: “The Company and I agree that the party asserting a claim must give written notice of any claim to the other party no later than the expiration of the statute of limitations (deadline for filing) that the law prescribes for the claim. Otherwise, the claim shall be deemed waived.” Plaintiff relies on *Ramirez v. Charter Commc’ns, Inc.* (2024) 16 Cal.5th 478, 502 and *Ellis v.*

U.S. Sec. Assocs. (2014) 224 Cal.App.4th 1213, 1217 in support of his contention that the notice provision is unconscionable.

Defendants argue that the notice provision is not a waiver of statutory rights but a procedural requirement for initiation of arbitration within the statute of limitations period.

The Court finds that the provisions at issue in *Ramirez* and *Ellis* are distinguishable. There, the employment arbitration agreements provided that, if a claim requires the filing of a charge with an administrative agency before a court action may be instituted (like a FEHA claim), the deadline for an arbitration claim was the administrative agency filing deadline (as opposed to the statute of limitations deadline). (*Ramirez, supra*, 16 Cal.5th at 502; *Ellis, supra*, 224 Cal.App.4th at 1217.) The deadline for filing a FEHA claim with the administrative agency is one year, which is two-thirds the amount of time provided under the applicable statute of limitations. (*Ibid.*) Thus, those courts held that the subject provisions shortened the limitations period and that such shortening was unconscionable. (*Id.*)

Here, the notice provision simply requires the employee to give notice of a claim no later than the expiration of the limitations period. It does not require that notice be given at the time a claim is required to be filed with an administrative agency. It does not shorten the limitations period. Were the action to be filed in court, it, too, would be required to be filed no later than the expiration of the limitations period. Based on the foregoing, the Court does not find the notice provision unconscionable.

Second, Plaintiff argues that the Agreement is substantively unconscionable because it binds the employee to the JAMS rules which were not supplied to Plaintiff. Defendants dispute that the Agreement is substantively unconscionable on this ground. The Court agrees with Defendants. An agreement's incorporation of rules of an arbitration service provider, such as JAMS, is a possible ground for procedural unconscionability, not substantive unconscionability. Plaintiff raised it as a ground for procedural unconscionability, which the Court discussed above. Thus, the Court does not analyze it again here. Moreover, Plaintiff identifies no specific rule under JAMS which it contends to be substantively unconscionable.

Finally, Plaintiff argues that the Agreement is unconscionable because it requires an arbitrator to determine the arbitrability of any claim (which Plaintiff classifies as an employee's gateway objection to arbitration) while allowing a court to determine the enforceability of a class waiver (which Plaintiff classifies as an employer's gateway objection). Plaintiff argues that this lacks mutuality under *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 117. Defendants reply that courts routinely find it proper for arbitration agreements to delegate the question of arbitrability to an arbitrator. (Reply, 10:13-15, citing *Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal.5th 233, 243.)

Armendariz did not involve this specific question. It dealt with a provision that required only employees to arbitrate their wrongful termination claims against the employer, but did not require the employer to arbitrate those claims against the employee. (*Id., supra*, 24 Cal.4th at 116-17.) *Armendariz* found that provision to lack mutuality. Yet, *Armendariz* expressly acknowledged that *not* "all lack of mutuality in a contract of adhesion [is] invalid." (*Id.*, at 118-

21.) The Court does not find the provision, here—requiring an arbitrator to determine issues of arbitrability, other than the enforceability of the class waiver—to lack mutuality, much less rise to the level of non-mutuality as that considered in *Armendariz*. (See also *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1248, fn. 4.0 [A provision is not “unfairly one-sided merely because one side is, as a practical matter, more likely to make use of it.”].)

Based on the foregoing, the Court does not find the Agreement substantively unconscionability.

For all the foregoing reasons, the Motion is GRANTED.

The court action is stayed pending the outcome of arbitration. (Code Civ. Proc., § 1281.4 [“If a court of competent jurisdiction . . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate.”].)